

Disclaimer: In view of the European Commission's transparency policy, the Commission is publishing the texts of its Comprehensive Economic Partnership Agreement with Indonesia following the Ministerial announcement on 23 September 2025. These texts are published for information purposes only and may undergo further modifications including as a result of the process of legal revision. These texts are without prejudice to the final outcome of the Agreement between the EU and Indonesia. The texts will be final upon signature. The Agreement will become binding on the Parties under international law only after completion by each Party of its internal legal procedures necessary for the entry into force of the Agreement.

CHAPTER 25

FINAL PROVISIONS

Article 25.1

Amendments

1. The Parties may agree, in writing, to amend this Agreement. Amendments to this Agreement constitute integral parts thereof.
2. Amendments shall enter into force on the first day of the second month, or on such later date as may be agreed by the Parties, following the date on which the Parties exchange written notifications certifying that they have completed their respective applicable legal requirements for entry into force of such amendments.
3. Notwithstanding paragraph 1, the Trade Committee may, in accordance with the respective applicable legal requirements of the Parties, amend this Agreement, where provided for in point (d) of Article 24.2 (Functions of the Trade Committee).

Article 25.2

Entry into force

1. The Parties shall approve this Agreement in accordance with their respective applicable legal requirements and procedures.
2. This Agreement shall enter into force on the first day of the second month following the date on which the Parties exchange written notifications certifying that they have completed their respective applicable legal requirements for the entry into force of this Agreement. The Parties may agree on another date of entry into force of this Agreement.
3. Notifications referred to in paragraph 2 shall be sent to the Secretary General of the Council of the European Union and to the Ministry of Foreign Affairs of Indonesia, or their respective successors.

Article 25.3

Termination

1. This Agreement shall remain in force unless terminated pursuant to paragraph 2.

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2. A Party may terminate this Agreement by written notice to the other Party. This notice shall be sent to the Secretary General of the Council of the European Union and to the Ministry of Foreign Affairs of Indonesia, or their respective successors. This termination shall take effect six months after the receipt of that notice, unless the Parties agree otherwise.

Article 25.4

Fulfilment of obligations

1. Each Party is fully responsible for the observance of all provisions of this Agreement.
2. Each Party shall take all general or specific measures required to fulfil their obligations under this Agreement. Each Party shall ensure within its territory the observance of all obligations and commitments under this Agreement by its respective central, regional and local governments and authorities, and by non-governmental bodies in the exercise of governmental powers delegated to them.
3. In cases of special urgency as defined in paragraph 4 of Article 44 of the Framework Agreement on Comprehensive Partnership and Cooperation between the European Community and its Member States, on the one part, and the Republic of Indonesia, on the other part, a Party may take appropriate measures with respect to this Agreement. The Parties agree that remaining a party, in good faith, to the Paris Agreement constitutes an essential element of this Agreement and a Party make take appropriate measures relating to this Agreement for violations thereof. Those appropriate measures shall be taken in accordance with the procedure set out in Article 44 of the Comprehensive Partnership and Cooperation between the European Community and its Member States, of the one part, and the Republic of Indonesia, of the other part. In the selection of actions, priority must be given to those which least disturb the functioning of this Agreement.

Article 25.5

Persons exercising delegated governmental authority

Unless otherwise provided for in this Agreement, each Party shall ensure that [any natural or juridical person], including state owned enterprises, [public enterprises], an enterprise granted special rights or privileges or a designated monopoly, that has been delegated regulatory, administrative or other governmental authority by a Party at any level of government, acts in accordance with the Party's obligations as set out under this Agreement in the exercise of that authority.

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Article 25.6

No direct effect

1. Nothing in this Agreement shall be construed as conferring rights or imposing obligations on persons, other than those created between the Parties under public international law, nor as permitting this Agreement to be directly invoked in the domestic legal systems of the Parties.
2. A Party shall not expressly provide for a right of action under its domestic law against the other Party on the ground that a measure of the other Party is inconsistent with this Agreement.

Article 25.7

Relation with other agreements

1. Unless otherwise provided for in this Agreement, the existing agreements between the Member States of the Union, the European Community or the Union and Indonesia are not superseded or terminated by this Agreement.
2. This Agreement shall be an integral part of the overall bilateral relations as governed by the Framework Agreement on Comprehensive Partnership and Cooperation between the European Community and its Member States, on the one part, and the Republic of Indonesia, on the other part and shall form part of the common institutional framework.
3. The Parties affirm their rights and obligations with respect to each other under the WTO Agreement. For greater certainty, nothing in this Agreement requires a Party to act in a manner inconsistent with its obligations under the WTO Agreement.
4. In the event of any inconsistency between this Agreement and any agreement other than the WTO Agreement to which both Parties are a party, the Parties shall immediately consult with each other with a view to finding a mutually satisfactory solution.
5. If any of the provisions of the WTO Agreement incorporated into this Agreement is amended, the Parties shall consult with a view to finding a mutually satisfactory solution, where necessary.

Article 25.8

References to laws, regulations and other agreements

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1. Unless otherwise provided for in this Agreement, any reference in this Agreement to laws or regulations of a Party shall be understood to include amendments thereto.
2. Unless otherwise provided for in this Agreement, where international agreements are referred to, or are incorporated into, this Agreement, in whole or in part, they shall be understood to include amendments thereto, or their successor agreements that enter into force for both Parties on or after the date of signature of this Agreement.

Article 25.9

General review

Without prejudice to specific provisions concerning reviews in other chapters of this Agreement, the Trade Committee shall undertake a general review of the implementation and operation of this Agreement within ten years of its entry into force, and thereafter at such times as the Parties may agree, unless the Trade Committee decide otherwise.

Article 25.10

Future accessions to the Union

1. The Union shall notify Indonesia of any request made by a country to accede to the Union.
2. During the negotiations between the Union and the country seeking accession, the Union should provide, upon request of Indonesia, and to the extent possible, any relevant information regarding any matter covered by this Agreement.
3. For greater certainty, this Agreement shall apply to trade and investment between the new Member State of the Union and Indonesia from the date of accession of that new Member State to the Union.
4. In order to facilitate the implementation of paragraph 3, the Trade Committee shall examine any effects of the accession on this Agreement and decide on the necessary amendments to this Agreement, and on any necessary adjustment or transition measures, sufficiently in advance of the date of accession of the new Member State to the Union. Such decision shall take effect on the date of accession of the new Member State to the Union.
5. The Union shall notify Indonesia of the entry into force of any accession to the Union.

Article 25.11

Territorial application

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1. This Agreement shall apply:

- (a) with respect to the Union, to the territories in which the Treaty on European Union and the Treaty on the Functioning of the European Union are applied and under the conditions laid down in those Treaties; and
- (b) with respect to Indonesia, to its territory, which is defined as the land territories, internal waters, archipelagic waters, territorial sea, including seabed and subsoil thereof, and airspace over such territories and waters, as well as continental shelf and exclusive economic zone, over which Indonesia has sovereignty, sovereign rights or jurisdiction as defined in its laws and in accordance with international law, including the United Nations Convention on the Law of the Sea, done at Montego Bay, December 10, 1982.

References to “territory” in this Agreement shall be understood in this sense, except as otherwise expressly provided.

2. As regards those provisions concerning the tariff treatment of goods, including rules of origin and origin procedures, this Agreement shall also apply with respect to the Union to those areas of the Union customs territory, as defined by Article 4 of Regulation (EU) No 952/2013 of the European Parliament and of the Council of 9 October 2013 laying down the Union Customs Code, not covered by point (a) of 1.

Article 25.12

Annexes, Appendices, Declarations, Protocols and Understandings

The Annexes, Appendices, Joint Declarations, Protocols to this Agreement constitute integral parts thereof.

Article 25.132

Authentic texts

This Agreement is drawn in duplicate in the Bulgarian, Croatian, Czech, Danish, Dutch, English, Estonian, Finnish, French, German, Greek, Hungarian, Irish, Italian, Indonesian, Latvian, Lithuanian, Maltese, Polish, Portuguese, Romanian, Slovak, Slovenian, Spanish and Swedish languages, each version being equally authentic.

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JOINT DECLARATION

Concerning Customs Unions

1. The Union recalls the obligation of those countries that have established a customs union with the Union to align their trade regime to the one of the Union, and for certain of them, to conclude preferential agreements with countries having preferential agreements with the Union.
2. In this context, the Parties note that Indonesia shall start negotiations with those countries which:
 - (a) have established a customs union with the Union, and
 - (b) whose products do not benefit from the tariff concessions under this Agreement,

with a view to concluding a bilateral agreement establishing a free trade area in accordance with Article XXIV of the GATT 1994. Indonesia shall start negotiations as soon as possible with a view to having the abovementioned agreements entering into force as quickly as possible after the entry into force of this Agreement.